

24VECV01658 24VECV01658

County: los-angeles

Division: Civil Law and Motion

Department: B

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Tentative Ruling

Hernandez v. FCA US, Case no. 24VECV01658

Hearing date September 1, 2026

Plaintiff

Hernandez's Motion for Attorney's Fees

Plaintiff

Hernandez sued defendant FCA US, LLC for alleged violations of the Song-Beverly Act. The matter settled on 1/13/26. Plaintiff moves for \$57,159.42 in attorney and paralegal fees and \$1,268.94 in costs. Defendant opposes the requested attorney and paralegal fees only.

Defendants

do not dispute that plaintiff is entitled to an award of attorney's fees but argue the requested fees are unreasonable in a straightforward lemon-law matter which settled without significant motion or trial practice. Defendants argue no lodestar multiplier should be awarded and assert the rates and hours sought should be reduced for an award of \$14,288.44.

Plaintiff

argues the nature, complexity and contingent basis of this case necessitate the fees sought, plus a 1.5 lodestar multiplier. Decl. Inscore, paras. 3, 17. This was a basic lemon law case in which no depositions were taken, no pretrial motions were heard and which settled prior to commencement of trial. Counsel requests 120.35 attorney hours and 77.97 paralegal hours. See Decl.

Inscore, exh. 1. In this straightforward matter, there is no basis for the court to award over 200 hours, nor a multiplier.

Plaintiff

requests \$150-\$200/hour for work by paralegals Ulloa, Quiroga, Salinas and Figueroa. See Decl. Inscore, exh. 1. Plaintiff requests approximately 77.97 hours, totaling \$8,287.83. Id. Plaintiff argues the fees sought for paralegal work are reasonable. Purely clerical or administrative tasks are not subject to an award of fees. See *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187. The court strikes the entirety of the \$8,287.83 in paralegal fees.

Plaintiff

requests \$550/hour for counsel Lara. Decl. Inscore, exh. 1; Decl. Panzarella, para. 5. Plaintiff requests 25.95 hours for Lara's work, totaling \$14,272.50. This is unreasonable; the court reduces the rate to \$500/hour, but grants the full hours requested, for an award of \$12,975.

Plaintiff

requests \$600/hour for counsel Inscore. Decl. Inscore, exh. 1. Plaintiff requests 13.08 hours for Inscore's work, totaling \$7,849. This is unreasonable for the reasons stated above; the court reduces the rate to \$500/hour, but grants the full hours requested, for an award of \$6,540.

Plaintiff

requests \$750/hour for counsel Yeck. Decl. Inscore, exh. 1. Plaintiff requests 3.25 hours for Yeck's work, totaling \$2,437.50. This is unreasonable; the court reduces the rate to \$500/hour, but grants the full hours requested, for an award of \$1,625.

An

award of 120 hours of attorney time at \$500/hour, plus costs, is reasonable in this matter. GRANTED as modified: \$1,268.94 in costs, \$12,975 for the work of Lara, \$6,540 for the work of Inscore and \$1,625 for the work of Yeck, a final award of \$22,408.94. Payable within 30 days.